

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Garfield	Team: Squad #10	CCRB Case #: 202200511	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 01/22/2022 12:50 AM, Saturday, 01/22/2022 12:55 AM, Saturday, 01/22/2022 3:00 AM	Location of Incident: § 87(2)(b) 48th Precinct Stationhouse	18 Mo. SOL 7/22/2023	Precinct: 48		
Date/Time CV Reported Sat, 01/22/2022 3:34 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/26/2022 10:38 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Hamza Jaji	08821	970616	048 PCT
2. PO Michael Rosario	20178	968106	048 PCT
3. PO Alisa Bajraktarevic	01157	951518	048 PCT
4. PO William Defossett	23210	962349	048 PCT
5. PO Jose Muniz	27133	972131	048 PCT
6. SGT Bryan Ortiz	03482	945272	048 PCT
7. An Officer			048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Jonathan Aponterodriguez	06763	970391	048 PCT
2. PO Albert Moulrier	15976	937832	048 PCT
3. LT Pawel Lachowski	00000	940350	048 PCT
4. PO Angelo Hernandez	25329	971996	048 PCT
5. PO Edgar Galvez	20261	962420	048 PCT
6. PO Jenilsys Rodriguez	18801	971647	048 PCT
7. PO Jonathan Mazza	14291	972097	048 PCT
8. PO Richard Fialkovic	11285	950408	048 PCT
9. PO Jessica Riley	26009	967293	048 PCT
10. PO Alhassan Biosalifu	01988	970417	048 PCT
11. PO Vincent Arias	03898	948627	048 PCT
12. PO John Reynoso	26443	968737	048 PCT
13. PO Charnel Tabon	24733	970249	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Hamza Jaji	Force: At § 87(2)(b) in the Bronx, Police Officer Hamza Jaji used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Alisa Bajraktarevic	Force: At § 87(2)(b) in the Bronx, Police Officer Alisa Bajraktarevic used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Jose Muniz	Force: At § 87(2)(b) in the Bronx, Police Officer Jose Muniz used physical force against § 87(2)(b)	C . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
D . PO Hamza Jaji	Abuse: At § 87(2)(b) in the Bronx, Police Officer Hamza Jaji threatened § 87(2)(b) with the use of force.	D . Within NYPD Guidelines
E . PO William Defossett	Force: At § 87(2)(b) in the Bronx, Police Officer William Defossett used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO Michael Rosario	Force: At § 87(2)(b) in the Bronx, Police Officer Michael Rosario used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . PO Hamza Jaji	Force: At § 87(2)(b) in the Bronx, Police Officer Hamza Jaji tightly handcuffed § 87(2)(b)	G . Unable to Determine
H . PO Alisa Bajraktarevic	Discourtesy: At § 87(2)(b) in the Bronx, Police Officer Alisa Bajraktarevic spoke discourteously to § 87(2)(b)	H . Substantiated
I . PO Alisa Bajraktarevic	Discourtesy: At the 48th Precinct Stationhouse, Police Officer Alisa Bajraktarevic spoke discourteously to § 87(2)(b)	I . Substantiated
J . PO Alisa Bajraktarevic	Force: At the 48th Precinct Stationhouse, Police Officer Alisa Bajraktarevic used physical force against § 87(2)(b)	J . Substantiated
K . SGT Bryan Ortiz	Abuse: At the 48th Precinct Stationhouse, Sergeant Bryan Ortiz threatened § 87(2)(b) with the use of force.	K . Substantiated
L . PO Hamza Jaji	Force: At the 48th Precinct Stationhouse, Police Officer Hamza Jaji used physical force against § 87(2)(b)	L . Within NYPD Guidelines
M . An Officer	Force: At the 48th Precinct Stationhouse, an officer used physical force against § 87(2)(b)	M . Within NYPD Guidelines
N . PO William Defossett	Force: At the 48th Precinct Stationhouse, Police Officer William Defossett used physical force against § 87(2)(b)	N . Unable to Determine
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)

Case Summary

On January 22, 2022, Captain Brian McCaughey of the 48th Precinct called IAB and filed the following complaint at the request of § 87(2)(b). On January 26, 2022, the CCRB received this complaint from IAB (with original IAB log number § 87(2)(b)).

On January 22, 2022, at approximately 12:50 a.m., § 87(2)(b) was arrested at § 87(2)(b) in the Bronx stemming from an incident involving his mother, § 87(2)(b). Several officers from the 48th Precinct were on scene during the arrest: PO Alisa Bajraktarevic, PO Hamza Jaji, PO William Defossett, PO Michael Rosario, PO Jose Muniz, PO Jonathan Aponterodriguez, PO Albert Moulrier, Lieutenant Pawel Lachowski, PO Angelo Hernandez, PO Edgar Galvez, PO Jenilsys Rodriguez, PO Jonathan Mazza, PO Richard Fialkovic, PO Jessica Riley, PO Alhassan Biosalifu, PO Vincent Arias, PO John Reynoso, and PO Charnel Tabon (PO Bajraktarevic has since transferred to the Bronx Robbery Squad).

PO Bajraktarevic, PO Jaji, and PO Muniz used force to hold onto § 87(2)(b) while he was placed in handcuffs and searched (**Allegations A, B, C: Force – Physical force, within NYPD guidelines**). While PO Jaji and PO Bajraktarevic escorted § 87(2)(b) to a police vehicle, § 87(2)(b) fell to the ground. PO Jaji said to § 87(2)(b) “Get up or it’s going to hurt.” (**Allegation D: Discourtesy – Word, within NYPD guidelines**).

PO Bajraktarevic, and PO Jaji, with the assistance of PO Muniz, lifted § 87(2)(b) off of the ground, carried him to the RMP, and pushed him into the back seat (**Subsumed in Allegations A-C**). PO Rosario and PO Defossett assisted in forcefully placing § 87(2)(b) into the RMP (**Allegations E, F: Force – Physical force, within NYPD guidelines**). § 87(2)(b) tried three times to pull away from the officers, and every time he did so PO Jaji allegedly tightened his handcuffs (**Allegation G: Force – Handcuffs too tight, unable to determine**). While transporting § 87(2)(b) to the stationhouse, PO Bajraktarevic said, “I don’t want to run over his fucking camera” (**Allegation H: Discourtesy – Word, substantiated**).

Outside the 48th Precinct stationhouse at approximately 12:55 a.m., while escorting § 87(2)(b) inside, PO Bajraktarevic pushed § 87(2)(b) up against a wall and said to him, “I told you to relax. You fucking relax, okay? Chill the fuck out. If I tell you to relax, you fucking relax.” (**Allegation I: Discourtesy – Word, substantiated**) (**Allegation J: Force – Physical force, substantiated**). As they entered the stationhouse, Sgt. Bryan Ortiz, who was working as the 48th Precinct desk sergeant, pointed his taser at § 87(2)(b) (**Allegation K: Abuse of Authority – Threat of force, substantiated**). § 87(2)(b) was escorted to a holding cell where PO Jaji and an unknown officer picked § 87(2)(b) up from the ground and placed him in the holding cell (**Allegations L, M: Force – Physical force, within NYPD guidelines**).

§ 87(2)(b) was taken to the hospital and taken back to the 48th Precinct stationhouse at § 87(2)(b) by PO Defossett. § 87(2)(b) alleged that PO Defossett picked him up and threw him into a holding cell (**Allegation N: Force – Physical force, unable to determine**).

No summons was issued. § 87(2)(b) was arrested for criminal mischief with intent to damage property (**BR 15**).

§ 87(2)(g), § 87(4-b)

There is BWC footage from PO Bajraktarevic, PO Jaji, PO Defossett, PO Rosario, PO Muniz, PO Aponterodriguez, PO Moulrier, Lieutenant Lachowski, PO Hernandez, PO Galvez, PO Rodriguez, PO Mazza, PO Fialkovic, PO Riley, PO Biosalifu, PO Arias, PO Reynoso, and PO Tabon (**BRs 09 -14**). Relevant portions will be discussed below.

Findings and Recommendations

Allegation (A) Force: At § 87(2)(b) in the Bronx, Police Officer Hamza Jaji used

physical force against § 87(2)(b)
Allegation (B) Force: At § 87(2)(b) in the Bronx, Police Officer Alisa Bajraktarevic used physical force against § 87(2)(b)
Allegation (C) Force: At § 87(2)(b) in the Bronx, Police Officer Jose Muniz used physical force against § 87(2)(b)
Allegation (D) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Hamza Jaji threatened § 87(2)(b) with the use of force.
Allegation (E) Force: At § 87(2)(b) in the Bronx, Police Officer William Defossett used physical force against § 87(2)(b)
Allegation (F) Force: At § 87(2)(b) in the Bronx, Police Officer Michael Rosario used physical force against § 87(2)(b)

§ 87(2)(b) (BR 02) stated that he had an argument with his mother, § 87(2)(b) at their apartment. § 87(2)(b) told § 87(2)(b) to take a walk, so he exited the apartment. When § 87(2)(b) got outside of the building, he saw two officers in a police vehicle who asked him if he was alright. § 87(2)(b) explained that he had had an argument with his mother and was going for a walk. § 87(2)(b) had walked approximately two to three building lengths away from his apartment when the two officers he had previously spoken to, along with two additional officers, approached him. All four officers grabbed § 87(2)(b) and handcuffed him. Two of the officers also took turns “roughing him up” by roughly grabbing his arms and pulling them as if to dislocate his shoulders. The officers had to drag § 87(2)(b) to the RMP because he could not walk as he had been “beaten up.”

The IAB referral (BR 01), prepared by Captain McCaughey to document a level two use of force, notes that after § 87(2)(b) was placed in handcuffs, § 87(2)(b) went limp and had to be carried to the police RMP. At the stationhouse, § 87(2)(b) alleged that officers beat him up and that his wrists were broken due to the handcuffs.

§ 87(2)(b) § 87(2)(b) mother, did not provide a statement to the investigation.

Allegation D derives from BWC footage. In PO Jaji’s BWC (BR 10), at 10:50, § 87(2)(b) is lying on the ground and PO Jaji says, “Get up, or it’s going to hurt.” § 87(2)(b) did not make any statements regarding this allegation.

The investigation obtained § 87(2)(b) arrest report for this incident (BR 15), the top charge being criminal mischief with intent to damage property. The narrative portion notes that § 87(2)(b) had a verbal dispute with § 87(2)(b) and, as he was leaving the apartment, he broke a window at the front of the apartment building.

PO Bajraktarevic, PO Jaji, PO Muniz, PO Defossett, and PO Rosario all consistently stated that § 87(2)(b) was noncompliant and resisted being placed into the RMP upon being placed under arrest.

PO Bajraktarevic (BR 04) stated that she and PO Jaji were called to the scene because they had a cage car – she did not know any details as to why § 87(2)(b) was under arrest. She recalled placing § 87(2)(b) in handcuffs and § 87(2)(b) immediately complaining that she had broken his arm. She described him as irate, yelling, and uncooperative. She believed that he was intoxicated as he was foaming at the mouth and smelled of alcohol at the time.

As she and PO Jaji walked him to their RMP, § 87(2)(b) “went limp” and dropped to the ground. She told § 87(2)(b) to get up, which he ignored. She and PO Jaji tried to pick him up but needed the assistance of PO Muniz and PO Defossett because § 87(2)(b) refused to get up himself. § 87(2)(b) kept yelling about his arm, which PO Bajraktarevic did not understand because nobody had injured his arm.

PO Muniz (BR 07) stated that he held onto § 87(2)(b) right arm by the elbow while § 87(2)(b) was placed in handcuffs and searched. § 87(2)(b) moved his body around as if trying to get away from the officers. PO Muniz did not move from his position, which resulted in § 87(2)(b) twisting his own arm at times as he tried to pull away from the officers. § 87(2)(b) said that officers

were twisting or breaking his arm, but PO Muniz explained that this was due to § 87(2)(b) moving himself around. § 87(2)(b) then fell to the ground as officers were placing him in the RMP and refused to get back up, so PO Muniz and additional officers had to pick § 87(2)(b) up and place him into the RMP. § 87(2)(b) stiffened his body when officers tried to place him into the RMP, so PO Muniz had to push § 87(2)(b) head into the RMP.

PO Jaji (BR 03) gave a statement consistent with PO Bajraktarevic's, with the following exceptions. He described § 87(2)(b) as "abusive" as he was cursing at officers and appeared intoxicated as he smelled like alcohol, had bloodshot eyes, and was slurring his words. He did not recall § 87(2)(b) resisting being placed in handcuffs. As he and PO Bajraktarevic walked § 87(2)(b) to their RMP, § 87(2)(b) began to limp and then fell to the ground on purpose. PO Jaji could not remember any additional details regarding the process of bringing § 87(2)(b) to the RMP. PO Jaji recalled § 87(2)(b) complaining the entire time, stating that "everything hurt."

PO Jaji initially did not recall making any specific threats of force to § 87(2)(b). However, having viewed his BWC, he explained that he told § 87(2)(b) "Get up, or it's going to hurt," to explain to § 87(2)(b) that if he did not stand up, he and PO Bajraktarevic would have to pull § 87(2)(b) up, which could be painful as they would have to put pressure on his arms to lift him.

PO Defossett (BR 05) confirmed that he was the officer that searched § 87(2)(b) prior to placing him in the RMP. He recalled § 87(2)(b) flailing his arms and moving around while he searched him, so officers had to hold his arms. He added that he assisted officers in pushing § 87(2)(b) into the RMP. He described § 87(2)(b) as irate, aggressive, and noncompliant as he refused to walk or step into the RMP himself.

PO Rosario (BR 06) stated that he was inside the apartment building while officers placed § 87(2)(b) in handcuffs and only came outside to assist officers in placing § 87(2)(b) into the RMP. He assisted by pulling § 87(2)(b) inside of the RMP from the other side. He did this because § 87(2)(b) was not complying with officer's orders to step inside the RMP. He made no additional physical contact with § 87(2)(b).

In PO Jaji's BWC (BR 10), at 7:14, § 87(2)(b) states he has a crackpipe and a razor on him while PO Defossett is frisking him. PO Jaji and PO Bajraktarevic then place him in handcuffs. § 87(2)(b) begins yelling, "Yo, for what? For what?" Throughout the handcuffing and searching, PO Muniz holds onto § 87(2)(b) arm. § 87(2)(b) moves around, as if he is pulling away from PO Muniz. PO Muniz does not move, let go of § 87(2)(b) arm, or say anything. § 87(2)(b) yells at officers to stop twisting his arm, and PO Bajraktarevic tells him to stop moving.

At 10:43, PO Bajraktarevic and PO Jaji are holding onto § 87(2)(b) by the arms and escorting him to the RMP when he drops to the ground. PO Bajraktarevic says, "Come on, guy." PO Jaji says, "Get up, or it's gonna hurt." § 87(2)(b) says, "Make it hurt." PO Bajraktarevic says, "Just get up." He does not get up. PO Jaji and PO Bajraktarevic half carry, half drag § 87(2)(b) to the RMP. PO Defossett and PO Muniz assist in picking § 87(2)(b) up from the ground.

PO Rosario's BWC (BR 11) depicts § 87(2)(b) falling to the ground from a clearer angle. At 10:18, § 87(2)(b) appears to fall to the ground. At 11:17, PO Muniz, PO Jaji, and PO Defossett pick § 87(2)(b) up off of the ground and attempt to place him in the RMP. § 87(2)(b) is yelling profanities. PO Rosario walks over to the other side of the RMP and pulls § 87(2)(b) in from the other side.

In PO Muniz's BWC (BR 12), at 7:30, PO Muniz is holding onto § 87(2)(b) right arm while he is being searched. § 87(2)(b) is swaying from side to side. PO Defossett tells § 87(2)(b) to stop moving. § 87(2)(b) says to PO Muniz to stop twisting his arm. PO Muniz says he is not twisting § 87(2)(b) arm. § 87(2)(b) continues moving from side to side. § 87(2)(b) yells at the officers to let go of him. At 11:30, § 87(2)(b) is standing outside of the RMP, next to the open back door. PO Muniz places his hand on top of § 87(2)(b) head. § 87(2)(b) yells at him to stop pushing his head. § 87(2)(b) does not step into the RMP. Multiple officers tell § 87(2)(b) to move his head and to get into the RMP. He instead tells the officers to "suck his dick." PO Muniz and PO Jaji push § 87(2)(b) into the RMP at 11:50.

A Threat Resistance and Injury Report (BR 16) prepared by Captain McCaughey lists PO Bajraktarevic, PO Jaji, PO Rosario, PO Defossett, and PO Muniz as subjects and describes the force as “wrestling/grappling” due to resistance toward officers. Captain McCaughey, who responded to § 87(2)(b) Hospital to investigate § 87(2)(b) allegations of excessive force, described § 87(2)(b) as appearing “highly intoxicated, heavy eyes with slurred speech, swaying back and forth as he spoke.” § 87(2)(b) told Captain McCaughey that he could not remember what happened other than that an officer broke his wrist. The report states that § 87(2)(b) wrists had slight redness that was reflective of being handcuffed: § 87(2)(b)

Due to § 87(2)(b) refusal to sign HIPAA forms, the investigation was unable to obtain his medical records pertaining to this incident.

NYPD Patrol Guide procedure 221-01 (BR 17) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject.

Officers consistently stated, and BWC clearly shows, that § 87(2)(b) did not comply with verbal commands to stop moving while being placed in handcuffs and searched, to get up when he fell to the ground on the way to the RMP, and to get in to the RMP. § 87(2)(g)

It is therefore determined that **Allegations A, B, C, E, and F** be closed as **within NYPD guidelines**.

§ 87(2)(g) BWC shows that officers also gave § 87(2)(b) time and issued verbal commands to get up off the ground and he refused to do so. § 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **within NYPD guidelines**.

Allegation (G) Force: At § 87(2)(b) in the Bronx, Police Officer Hamza Jaji tightly handcuffed § 87(2)(b)

§ 87(2)(b) stated (BR 02) that he tried to pull away from the officers three times before officers placed him in the RMP, and each time he did so, PO Jaji tightened his handcuffs. § 87(2)(b) was unable to describe how PO Jaji did this, and only noted that each time he pulled away from officers, he felt PO Jaji make his handcuffs tighter.

§ 87(2)(b) did not provide a statement to the investigation.

PO Jaji did not recall § 87(2)(b) making specific statements that his handcuffs were too tight, nor did he recall if he adjusted § 87(2)(b) handcuffs at any point.

PO Rosario (BR 06) was inside the apartment building when officer handcuffed § 87(2)(b) and did not witness this portion of the incident.

PO Bajraktarevic (BR 04), PO Defossett (BR 05), and PO Muniz (BR 07) all consistently stated that they did not observe § 87(2)(b) make any complaints about his handcuffs nor did they describe PO Jaji ever tightening § 87(2)(b) handcuffs.

While all five officers’ BWC (BRs 09 – 15) show a different angle, no video comprehensively shows § 87(2)(b) handcuffs.

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **unable to determine**.

Allegation (H) Discourtesy: At § 87(2)(b) in the Bronx, Police Officer Alisa Bajraktarevic spoke discourteously to § 87(2)(b)

Allegation H derives from video. In PO Bajraktarevic's BWC (BR 09), beginning at 12:52, § 87(2)(b) is seated in the back of a police vehicle with PO Bajraktarevic in the front driver's seat and PO Jaji in the front passenger seat. As PO Bajraktarevic prepares to drive away from the location, she says, "I don't want to run over his fucking camera." § 87(2)(b) responds, "Yeah, run over that shit!"

§ 87(2)(b) did not describe this portion of the incident (BR 02).

§ 87(2)(b) did not provide a statement to the investigation.

PO Bajraktarevic (BR 04) explained that when she made the statement, "I don't want to run over his fucking camera," she was referencing someone's BWC that had fallen to the ground and that the statement was not directed towards § 87(2)(b).

Patrol Guide procedure 200-02 (BR 23) states that officers are committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others.

In DAO-DCT Case Number: 2017-17276 (BR 24) the court held that language which would ordinarily be inappropriate in dealing with civilians may be excused in the course of a violent and stressful confrontation.

§ 87(2)(g)

It is therefore recommended that **Allegation H** be **substantiated**.

Allegation (I) Discourtesy: At the 48th Precinct Stationhouse, Police Officer Alisa Bajraktarevic spoke discourteously to § 87(2)(b)

Allegation (J) Force: At the 48th Precinct Stationhouse, Police Officer Alisa Bajraktarevic used physical force against § 87(2)(b)

In his statement to IAB (BR 01), § 87(2)(b) said that when he arrived at the stationhouse, he sustained a broken collar bone from being pushed up against a wall. In his CCRB statement (BR 02) he did not mention being pushed up against a wall. He added that officers used curse words throughout the incident, but he could not remember what was said.

Allegation I derives from BWC footage. In PO Bajraktarevic's BWC (BR 09), beginning at 16:53, she and PO Jaji are escorting § 87(2)(b) from their RMP to the 48th Precinct stationhouse when PO Bajraktarevic pushes § 87(2)(b) up against a wall and says, "I told you to relax. You fucking relax, okay? Chill the fuck out. If I tell you to relax, you fucking relax."

PO Bajraktarevic (BR 04) stated that she was holding onto § 87(2)(b) as she and PO Jaji walked him into the stationhouse from the RMP. § 87(2)(b) was "pulling her forward" at a pace she did not like. She described § 87(2)(b) as not walking like a "normal person" and as one of the most "passive resistive people" she had ever encountered. PO Bajraktarevic repeatedly told § 87(2)(b) to stop pulling her but he continued to do so. PO Bajraktarevic described the entry to the stationhouse as a set of double doors that leads to a walkway with another set of doors leading to the stationhouse lobby. They walked through the first set of doors and into the walkway, where § 87(2)(b) "yanked" PO Bajraktarevic again. PO Bajraktarevic used her body weight and pushed § 87(2)(b) into the wall to restrain him, and she said, "I need you to fucking relax" two or three times.

She explained in her CCRB interview that the discourtesies were not due to § 87(2)(b) actions but because she was frustrated at the situation.

After reviewing her BWC footage of this portion of the incident, PO Bajraktarevic stated that she did not consider this incident to be particularly stressful and characterized it as "...just normal routine situations that happen."

PO Jaji (BR 03) could not recall any specific details pertaining to the process of escorting § 87(2)(b) from the RMP to the stationhouse other than that § 87(2)(b) was "limping and falling to the ground." PO Bajraktarevic's BWC footage of this portion of the incident was presented during the interview. The clip did not refresh PO Jaji's memory of any additional actions that § 87(2)(b) was taking other than limping and falling to the ground as they brought him into the stationhouse.

Sgt. Ortiz (BR 08), the desk sergeant for the 48th Precinct that day, stated that he could not see into the hallway where the allegations occurred from the front desk.

PO Defossett (BR 05), PO Rosario (BR 06), and PO Muniz (BR 07) consistently stated that they were not present for this portion of the incident.

In PO Bajraktarevic's BWC (BR 09), at 16:40, outside the 48 Precinct stationhouse, PO Jaji opens the door to the RMP for § 87(2)(b) exits the vehicle and walks to a door to the stationhouse, about twenty feet from the RMP. PO Bajraktarevic is behind § 87(2)(b) and holding onto his right arm. PO Jaji is standing next to § 87(2)(b) on his left and holding onto his left arm. They walk to the doors to the stationhouse. § 87(2)(b) is walking quickly but does not fall to the ground or appear to be limping. Neither PO Jaji nor PO Bajraktarevic give any verbal commands to § 87(2)(b) while they walk. PO Bajraktarevic opens the door which leads to a small hallway, about fifteen feet long, where another set of doors leads to the front desk lobby area of the 48 Precinct stationhouse.

At 16:53, inside the hallway, § 87(2)(b) appears to try and pull away from the officers (it is not clear on video but in the reflection of the doors, § 87(2)(b) arms raise up while PO Jaji and PO Bajraktarevic attempt to grab him.) PO Bajraktarevic then pushes § 87(2)(b) up against a wall face-first and says, "I told you to relax. You fucking relax, okay? Chill the fuck out. If I tell you to relax, you fucking relax."

The TRI prepared for this incident (BR 16) did not address this portion of the incident.

NYPD Patrol Guide procedure 221-01 (BR 17) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject. In determining whether the use of force is reasonable, members of the service should consider the following: 1) The nature and severity of the crime/circumstances. 2) Actions taken by the subject. 3) Duration of the action. 4) Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders. 5) Whether the subject is actively resisting custody. 6) Whether the subject is attempting to evade arrest by flight. 7) Number of subjects in comparison to the number of MOS. 8) Size, age, and condition of the subject in comparison to the MOS. 9) Subject's violent history, if known. 10) Presence of hostile crowds or agitators. 11) Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

Patrol Guide procedure 200-02 (BR 23) states that officers are committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others.

In DAO-DCT Case Number: 2017-17276 (BR 24) the court held that language which would ordinarily be inappropriate in dealing with civilians may be excused in the course of a violent and stressful confrontation.

§ 87(2)(g)

§ 87(2)(g) BWC footage shows that while § 87(2)(b) may have been walking quickly, PO Bajraktarevic gave § 87(2)(b) no verbal commands before she pushed him up against the wall. § 87(2)(g)

§ 87(2)(b) is seen walking normally.

BWC footage does show PO Bajraktarevic and PO Jaji struggling with § 87(2)(b) slightly as they enter the hallway to the stationhouse. § 87(2)(g) However, § 87(2)(b) was in handcuffs, was being escorted into the stationhouse by two officers, and did not display any other forms of resistance when this occurred. § 87(2)(g)

It is therefore recommended that **Allegation I** be substantiated.

It is therefore recommended that **Allegation J** be substantiated.

Allegation (K) Abuse of Authority: At the 48th Precinct Stationhouse, Sergeant Bryan Ortiz threatened § 87(2)(b) with the use of force.

In his CCRB statement (BR 02), § 87(2)(b) alleged that at the stationhouse, the desk sergeant (identified by the investigation as Sgt. Bryan Ortiz) took out his gun and pointed it at his face.

In PO Bajraktarevic's BWC (BR 09), at 17:05, as PO Bajraktarevic and PO Jaji walk § 87(2)(b) into the stationhouse, Sgt. Ortiz points his taser at § 87(2)(b) who is rear cuffed. § 87(2)(b) falls to the ground. PO Bajraktarevic asks other officers in the stationhouse to help her pick § 87(2)(b) up. Sgt. Ortiz continues to stand there and point his taser at § 87(2)(b) for approximately twenty seconds. He does not assist PO Bajraktarevic and PO Jaji in picking § 87(2)(b) up from the ground.

Sgt. Ortiz (BR 08) initially had no recollection of this incident, and when asked about **Allegations I and J** stated that he could not see into the hallway from his position at the front desk. BWC footage depicting the allegation was presented during the interview and the clip did not refresh his memory of the incident, however Sgt. Ortiz then said that he believed he saw PO Jaji and PO Bajraktarevic struggling to bring § 87(2)(b) into the stationhouse. He was unable to explain what he meant by "struggling" nor could he provide any additional details. He was not informed in advance that they were arriving via radio and did not have any information that § 87(2)(b) had been uncooperative with officers.

PO Jaji (BR 03) initially did not recall an officer pointing his Taser at § 87(2)(b) however upon reviewing BWC footage he identified Sgt. Ortiz. He provided no additional details.

PO Bajraktarevic (BR 04) recalled that Sgt. Ortiz pointed a Taser at § 87(2)(b) but she had no further recollection of this portion of the incident.

Patrol Guide 221-08 (BR 18) states that "A Conducted Electrical Weapon or 'CEW' should never be used in CARTRIDGE or DRIVE STUN mode on a rear-cuffed prisoner."

§ 87(2)(g) It is

therefore recommended that **Allegation K** be **substantiated**.

Allegation (L) Force: At the 48th Precinct Stationhouse, Police Officer Hamza Jaji used physical force against § 87(2)(b)

Allegation (M) Force: At the 48th Precinct Stationhouse, an officer used physical force against § 87(2)(b)

In his CCRB statement (**BR 02**), § 87(2)(b) stated that an officer “dragged” him in the stationhouse to the holding cells where they then picked him up and threw him into a cell. He did not clarify how many officers participated in the “throwing” of him into the cell.

PO Jaji (**BR 03**) did not recall throwing § 87(2)(b) into a holding cell. § 87(2)(b) was noncompliant and was yelling about injuries the entire time he was processed at the stationhouse. When presented with BWC footage of this portion of the incident, PO Jaji was unable to identify the officer who assisted him in placing § 87(2)(b) into the cell.

PO Bajraktarevic (**BR 04**) stated that she was preparing § 87(2)(b) pedigree sheet at the front desk and did not observe officers escorting § 87(2)(b) to the holding cell or lodging him inside a cell.

Sgt. Ortiz (**BR 08**) did not recall who took § 87(2)(b) into the holding cell area.

In PO Jaji’s BWC (**BR 10**), beginning at 20:40, PO Jaji escorts § 87(2)(b) from the front desk to the holding cells. Officers do not drag § 87(2)(b). PO Jaji removes § 87(2)(b) belt and boots. § 87(2)(b) screams that § 87(2)(b) is ripping his leg off. § 87(2)(b) falls to ground, screaming. PO Jaji lifts § 87(2)(b) up and places him into the holding cell, about three feet away, with the assistance of an unknown officer. § 87(2)(b) is not dropped or thrown to the ground.

NYPD Patrol Guide procedure 221-01 (**BR 17**) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject.

§ 87(2)(g)

It is therefore recommended that **Allegations L and M** be closed as **within NYPD guidelines**.

Allegation (N) Force: At the 48th Precinct Stationhouse, Police Officer William Defossett used physical force against § 87(2)(b)

In his CCRB statement (**BR 02**), § 87(2)(b) alleged that after he went to the hospital, he was taken back to the 48th Precinct stationhouse where he was picked up and thrown into a holding cell a second time.

PO Defossett (**BR 05**) stated that he accompanied § 87(2)(b) to the hospital with EMS and that he was the only officer who did so. He also said that he escorted § 87(2)(b) from the hospital back to the stationhouse and into the holding cell. He did not pick § 87(2)(b) up and throw him into the holding cell.

The investigation was unable to obtain any video footage that captured this allegation.

§ 87(2)(g)

It is therefore recommended that **Allegation N** be closed as **unable to determine**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint in which § 87(2)(b) has been a party (BR 20).
- PO Jaji has been a member of service for two years and this is the first CCRB complaint in which he is listed as a subject.
- PO Bajraktarevic has been a member of service for eleven years and has been listed as a subject in one CCRB complaint and two allegations, neither of which were substantiated.
- PO Muniz has been a member of service for one year and this is the first CCRB complaint in which he is listed as a subject.
- PO Defossett has been a member of service for six years and has been listed as a subject in two CCRB complaints and three allegations, none of which were substantiated.
 - 202202496 involves one allegation of force that is currently closed pending litigation.
- PO Rosario has been a member of service for three years and this is the first CCRB complaint in which he is listed as a subject.
- Sgt. Ortiz has been a member of service for fifteen years and has been listed as a subject in nine CCRB complaints and 25 allegations, two of which were substantiated.
 - 201500811 involved one allegation of a threat of arrest that was substantiated. The Board recommended and the NYPD imposed formalized training.
 - 202003619 involved one allegation of discourtesy (word) which was substantiated. The Board recommended Command Discipline A and the NYPD imposed no penalty.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

CCRB Case # 202200511

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Investigator:	<u>Carter Garfield</u>	<u>Inv. Garfield</u>	<u>3/29/2023</u>
	Signature	Print Title & Name	Date
Squad Leader:	<u>Maura R. Roche</u>	<u>IM Maura R. Roche</u>	<u>03/30/2023</u>
	Signature	Print Title & Name	Date
Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date